Attorney Review Cover Letter / Memorandum

CONFIDENTIAL — ATTORNEY-CLIENT COMMUNICATION SUBJECT TO ATTORNEY-CLIENT PRIVILEGE

Date: March 16, 2026

From: Erick M. Ramdeholl, President Apex Logics LLC d/b/a TradVue 1935 Commerce Lane, Suite 9 Jupiter, FL 33458 EIN: 93-3771291 FL Doc# L23000460971 | DBA Reg# G26000036763 legal@tradvue.com

To: [Attorney Name] [Law Firm] [Address]

Re: Legal Review of TradVue Platform — Terms of Service, Privacy Policy, Disclaimer, Cookie Policy, and Acceptable Use Policy

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1. Overview and Purpose of This Engagement

We are requesting your review and strengthening of the attached draft legal documents for **TradVue**, a SaaS trading journal and analytics platform operated by **Apex Logics LLC**, a Florida LLC registered in Palm Beach County.

All attached documents are **internal drafts** prepared for attorney review. We have attempted to be thorough and accurate, but we are not attorneys. The purpose of this engagement is for you to:

1. Review each document for legal accuracy, enforceability, and completeness;
2. Strengthen language in areas of identified legal risk (outlined below);
3. Identify anything we have missed;
4. Answer the specific questions listed in Section 4.

We intend to deploy these documents on the TradVue platform (tradvue.com) as clickwrap agreements prior to accepting paying customers. **We have not yet gone live with paid subscriptions.** This review is part of our pre-launch legal preparation.

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2. What TradVue Is

TradVue is a **SaaS trading journal and analytics platform** for individual traders. It is a tool to help traders log, review, and analyze their own historical trading data.

Core Features (currently live or in final development):

Feature	Description
Trade Journaling	Users manually enter or import trade records, annotate with notes and tags
Performance Analytics	Statistical analysis of user's own trade history (win rate, P&L, drawdown, etc.)
Portfolio Tracking	Visualization of holdings using third-party market data
AI Coach	AI-powered analysis of user's trade history using OpenAI API — generates textual insights about patterns
Watchlists & Alerts	Users define watchlists; alerts notify when price thresholds are reached

CSV Import	Users import trade history from brokers via CSV files
Playbooks	User-created strategy templates
Post-Trade Ritual	Guided trade review workflow
Correlation Matrix	Visualizes correlations between instruments
Market Data Display	Charts and data from Alpaca, Marketaux, Finnhub

What TradVue Does NOT Do:

- Execute, route, or place trades
- Provide investment advice or recommendations
- Manage portfolios or funds
- Act as a registered investment adviser or broker-dealer

Infrastructure:

- **Backend Hosting:** Render
- **Frontend Hosting:** Vercel
- **Database:** Supabase (PostgreSQL, hosted on AWS, US-based)
- **CDN / Security:** Cloudflare
- **Payments:** Stripe (PCI DSS compliant)
- **Email:** Resend API
- **Analytics:** Google Analytics GA4
- **Market Data:** Alpaca Markets, Marketaux, Finnhub
- **AI:** OpenAI API (GPT models)
- **Broker Aggregation:** SnapTrade (planned future feature, not yet live)

Pricing:

- Free trial: 3 weeks full access, then limited free tier (30-day rolling view window)
- Monthly plan: $24/month, auto-renewing
- Annual plan: $201.60/year ($16.80/month equivalent), auto-renewing
- No mobile app yet (planned for the future)
- U.S.-based users are the primary target market, but the platform is accessible globally

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3. Identified Legal Risk Areas

We have attempted to address the following risks in the draft documents. We need your assessment of whether our treatment is sufficient and where language should be strengthened.

3.1 AI Coach and Investment Adviser Classification Risk

THE MOST CRITICAL RISK WE HAVE IDENTIFIED.

Our AI Coach feature analyzes a user's trade history using OpenAI's GPT API and returns textual analysis such as: "Your win rate on AAPL calls drops significantly on Fridays — consider reviewing your Friday morning entry timing."

We are concerned that:

- The AI Coach feature, depending on the specificity and nature of its outputs, could be interpreted as providing "investment advice" or "personalized investment advice" under the Investment Advisers Act of 1940 (15 U.S.C. § 80b-1 et seq.);
- Generating insights from a user's own trade data (rather than making market recommendations) may still attract scrutiny if outputs are framed in ways that resemble investment guidance;
- We may be at risk even if we disclaim "investment advice" status if the functional effect of our AI outputs is advisory in nature.

We have added extensive disclaimers in the ToS (Section 8), the standalone Disclaimer, and the AUP. We need you to:

- Assess whether the AI Coach feature, as described, creates investment adviser registration risk under the Investment Advisers Act of 1940;
- Review whether any specific type of AI output we might generate crosses a legal line;
- Confirm whether our disclaimers are legally sufficient under the current SEC interpretive guidance on technology-based advisory services (e.g., SEC Release No. IA-2050 and subsequent guidance);
- Advise whether we should add any affirmative contractual restrictions on how users can use AI Coach outputs.

3.2 SEC and FINRA Regulatory Implications

Related to the above, we need guidance on whether:

- Providing market data displays (even from third-party providers) alongside trade analytics creates any securities regulatory concern;
- Offering watchlists and price alerts (user-defined, not TradVue-recommended) triggers any registration or disclosure requirements;
- The combination of features (analytics + market data + AI insights) could be interpreted as an unregistered securities information service with advisory characteristics under federal or state securities law.

3.3 Subscription Billing and Auto-Renewal Compliance

We have drafted auto-renewal terms and a refund policy. We need you to confirm compliance with:

- Florida's automatic renewal law (if applicable to SaaS subscriptions);
- California's automatic renewal law (ARL, Cal. Bus. & Prof. Code § 17600 et seq.) — California residents are likely a significant portion of our user base;
- New York automatic renewal requirements;
- FTC guidelines on negative option marketing (16 C.F.R. Part 425 and the updated Negative Option Rule);
- Whether our cancellation and refund policy (no refund on monthly, 30-day window on annual) is legally defensible in consumer protection terms.

3.4 Data Breach Liability and Cybersecurity

We have addressed breach notification in the Privacy Policy. Key questions:

- Given that we store sensitive financial/trading data, what is our potential liability exposure in a data breach scenario?
- Are our security representations in the Privacy Policy (TLS, encryption at rest, RLS, Cloudflare WAF) adequate as contractual security commitments, or do they create warranty-like obligations that could expose us if we suffer a breach?
- What are our data breach notification obligations under Florida law (Florida Information Protection Act, Fla. Stat. § 501.171), GDPR, and relevant state laws?

3.5 Third-Party Data and Broker Sync Liability

We disclaim responsibility for data accuracy from brokers and market data providers. Please review:

- Whether our broker sync and market data disclaimers are sufficient to shield us from claims where users trade based on inaccurate data displayed in TradVue;
- Whether we need additional flow-down clauses with SnapTrade (once implemented) to adequately pass through liability for data accuracy errors.

3.6 OpenAI Data Processing and GDPR

We disclose that trade data is sent to OpenAI's API for AI Coach features. Please review:

- Whether our disclosure is GDPR-compliant as a consent mechanism for this data transfer;
- Whether OpenAI is our "data processor" under GDPR, requiring a Data Processing Agreement (DPA) with OpenAI (OpenAI does offer a standard API DPA);
- Whether our privacy policy adequately discloses the legal bases for this processing under GDPR Article 6 and Article 28.

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4. Specific Questions for Attorney Review

Please provide your professional assessment of the following questions:

4.1 Does the TradVue AI Coach feature, as described in Section 2 and in the draft Terms of Service (Section 8), risk classification as "investment advice" or the operation of an "investment advisory service" under the Investment Advisers Act of 1940? If yes, what would registration entail, and are there exemptions that might apply?

4.2 Is our binding arbitration clause (Terms of Service, Section 17) enforceable under Florida law, including against consumer users? Does the AAA Commercial Arbitration Rules designation create any issues for consumer-facing arbitration? Should we use AAA Consumer Arbitration Rules instead? Are there any recent Florida Supreme Court or Eleventh Circuit decisions we should be aware of?

4.3 Are our limitation of liability caps (amount paid in prior 12 months, or $100, whichever is greater) reasonable and enforceable under Florida law, particularly in a consumer-facing SaaS context? Are there any Florida-specific consumer protection statutes that might override our limitation of liability clauses?

4.4 Do we need additional state-specific disclosures or filings for:

- **California:** CCPA/CPRA compliance, California securities disclosures, ARL compliance
- **New York:** NY financial services disclosures, SHIELD Act compliance
- **Texas:** Texas Business & Commerce Code cybersecurity notification requirements Any other high-population states with specific SaaS or financial service disclosure requirements?

4.5 Is our CCPA compliance section in the Privacy Policy legally sufficient for a company of our size and nature? Do we meet the thresholds that trigger CCPA obligations (>$25M revenue, or >50,000 consumers/year)? Even if we are below CCPA thresholds currently, should we include the rights section as a matter of best practice given our growth trajectory?

4.6 Should Apex Logics LLC register with any state or federal financial regulatory body before going live with TradVue, given its AI Coach feature and market data displays? Specifically:

- SEC registration as an investment adviser or exempt reporting adviser?
- Any state investment adviser registration?
- Any commodity trading adviser registration with the CFTC?

- Any FINRA membership or notice filing?

4.7 Do we need a separate End User License Agreement (EULA) for a mobile application when TradVue launches on iOS and/or Android? What mobile-specific legal requirements should we be aware of (Apple App Store and Google Play Store terms, COPPA mobile-specific requirements)?

4.8 Is our disclosure regarding OpenAI API data processing in the Privacy Policy sufficient to satisfy GDPR Article 13 (transparency), Article 28 (data processor), and to establish a valid legal basis for transmitting EU user trade data to OpenAI's US-based API? Should we enter into a formal Data Processing Agreement (DPA) with OpenAI, and if so, are OpenAI's standard API DPA terms adequate? Do we need to update our GDPR disclosure regarding Standard Contractual Clauses for the OpenAI data transfer?

4.9 Should TradVue offer a separate **Data Processing Agreement (DPA)** for enterprise customers or business accounts? As we grow, we anticipate attracting professional traders, small funds, and trading firms. These entities may require a DPA for GDPR compliance. What should such a DPA include, and what would our obligations be as a data processor for those entities?

4.11 Please review the attached Operating Agreement for Apex Logics LLC. It was originally drafted as a template and has never been formally executed. We have updated it to reflect the correct member name (Erick M. Ramdeholl), added TradVue DBA provisions, AI/technology operations sections, data breach response authority, and insurance requirements. Please review for: (a) completeness and enforceability under Florida LLC law (Chapter 605); (b) adequacy of the IP assignment provisions to cover all TradVue-related intellectual property; (c) whether the AI operations and data processing provisions are sufficient; (d) whether the single-member structure adequately protects the Member's personal assets (corporate veil); (e) any additional provisions recommended for a technology/SaaS LLC operating in the fintech space. We would like to execute this agreement as part of this legal review engagement.

4.10 Before we go live with paid subscriptions and process customer payment data via Stripe, what **insurance coverage** do you recommend? Specifically:

- Cyber liability insurance — minimum recommended limits given our infrastructure and data types?
- Errors and omissions (E&O) / Professional liability insurance?
- General commercial liability?
- Directors & Officers (D&O) insurance for the LLC?
- Any financial services-specific coverage given the AI Coach feature and analytics? Any specific insurers or programs you would recommend for a pre-revenue SaaS startup in the fintech space?

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5. Documents Attached for Review

The following draft documents are attached to this memorandum for your review:

Document	Filename	Status
Terms of Service	`TERMS_OF_SERVICE.md`	Draft — needs attorney review
Privacy Policy	`PRIVACY_POLICY.md`	Draft — needs attorney review
Disclaimer	`DISCLAIMER.md`	Draft — needs attorney review
Cookie Policy	`COOKIE_POLICY.md`	Draft — needs attorney review
Acceptable Use Policy	`ACCEPTABLE_USE_POLICY.md`	Draft — needs attorney review

Operating Agreement	`OPERATING_AGREEMENT.md`	Draft — never executed, needs review and execution

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6. Our Priority Review Areas

If attorney time is limited, we request that the following be prioritized in the order listed:

1. **AI Coach / Investment Adviser classification risk** (Question 4.1) — this is our #1 legal risk
2. **Limitation of liability and arbitration enforceability** (Questions 4.2 and 4.3)
3. **Auto-renewal compliance** (Section 3.3)
4. **Insurance recommendations** (Question 4.10) — we need this before going live
5. **GDPR / OpenAI data processing** (Question 4.8)
6. All other questions and document review

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7. Timeline and Next Steps

We are targeting a paid subscription launch in **Q2 2026**. We would like to have finalized, attorney-approved legal documents in place at least **30 days before launch**.

Preferred timeline for initial review and response: **within 2–3 weeks of receipt of this package.**

Please confirm receipt of this package and advise on your engagement terms, including hourly rate, estimated hours for initial review, and any retainer requirements.

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8. Contact

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This memorandum and the attached draft documents are confidential and prepared in anticipation of legal advice. All attached documents are marked as DRAFT and are not yet published or effective. Nothing in these draft documents constitutes legal advice.

TradVue is a product of Apex Logics LLC. Apex Logics LLC, FL Doc# L23000460971, DBA Reg# G26000036763, EIN 93-3771291.